

The Narcotic Drugs and Psychotropic Substances (Execution of Bond by Convicts or Addicts) Rules, 1985

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The Narcotic Drugs and Psychotropic Substances (Execution of Bond by Convicts or Addicts) Rules, 1985

UNION OF INDIA

India

The Narcotic Drugs And Psychotropic Substances Act, 1985

The Narcotic Drugs and Psychotropic Substances (Execution of Bond by Convicts or Addicts) Rules, 1985

Rule

THE-NARCOTIC-DRUGS-AND-PSYCHOTROPIC-SUBSTANCES-EXECUTION-OF-BOND-BY-CONVICTS-OR-ADDICTS-RULES-1985 of 1985

Published on 26 December 1985

Commenced on 26 December 1985

[This is the version of this document from 26 December 1985.]

[Note: The original publication document is not available and this content could not be verified.]

Published vide S.O. 912(E), dated 26.12.1985, published in the Gazette of India, Pt.II, Section 3(ii), dated 26.12.1985.

Enforced from 26.12.1985

142.

In exercise of the powers conferred by section 76 read with sections 34 and 39 of the Narcotic Drugs and Psychotropic Substances Act, 1985 (

61 of 1985

), the Central Government hereby makes the following rules, namely:- :

Enforced from 26.12.1985.

1.

Short title and commencement

(1)

These rules may be called the Narcotic Drugs and Psychotropic Substances (Execution of Bond by Convicts or Addicts) Rules, 1985.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Form of bond to be executed under section 34

.Whenever any person is convicted of an offence punishable under any provision of Chapter IV of the Narcotic Drugs and Psychotropic Substances Act, 1985 (hereinafter referred to as the Act), the form of bond which a Court may require him to execute under section 34 of the Act, shall be as in Form I appended to these rules.

3.

Forms of bonds to be executed under section 39

(1)

When any person addicted to any narcotic drug or psychotropic substance is found guilty of an offence punishable under section 27 of the Act and the Court directs that such person be released for undergoing medical treatment on his entering into a bond, the form of such bond shall be as in Form II appended to these rules.

(2)

When any person released for undergoing medical treatment for detoxification or de-addiction under sub-section (1) of section 39 of the Act is required by the Court to enter into a bond before his release under sub-section (2) of that section, the form of such bond shall be as in Form III appended to these rules.

Form I

Bond to Abstain From Commission of any Offence under Chapter IV of the Narcotic Drugs and Psychotropic Substances Act, 1985

(See rule 2)

Whereas I,..... (name)..... son/daughter/wife of..... inhabitant of..... (place), have been called upon to enter into a bond to abstain from the commission of any offence under Chapter IV of the Act, for the term of....., I hereby bind myself not to commit any such offence during the said term and, in case of my making default therein, I hereby bind myself to forfeit to the Government the sum of rupees.....

Dated this (Signature)

(Where a bond with sureties is required to be executed add:)

We do hereby declare ourselves sureties for the above namedthat he/she will abstain from the commission of offences under Chapter IV of the Narcotic Drugs and Psychotropic Substances Act, 1985 during the said term; and, in case of his/her making default therein, we bind ourselves, jointly and severally, to forfeit to the Government the sum of rupees.....

Dated this.....day of.....20.....

(Signature)

Form II

Bond to Appear before the Court after Medical Treatment for De-Toxification/De-Addiction and to Abstain from Commission of any offence under Chapter IV of the Narcotic Drugs and Psychotropic Substances Act, 1985.

[See rule 3(1)]

Whereas I,.....(name),.....son/daughter/wife of..... inhabitant of (place), have consented to undergo medical treatment for de-toxification, de-addiction and have been called upon to enter into a bond to appear before the Court before medical treatment, and in the meantime to abstain from the commission of any offence under Chapter IV of the Act, I hereby bind myself to do so and, in case of my making default therein, I hereby bind myself to forfeit to the Government the sum of rupees.....

Dated this (Signature)

(Where a bond with sureties is required to be executed, add:)

We do hereby declare ourselves sureties for the above named that he/she will Dated this (Signature)
Form III

Bond to Abstain From the Commission of any Offence under Chapter IV of the Narcotic Drugs and Psychotropic Substances Act, 1985 for a period to be specified by the Court and Failure so to Abstain, to appear before the Court and receive sentence when called upon during such period

[See rule 3(2)]

Whereas I, (name) son/daughter/wife of inhabitant of (place) have been called upon to enter into a bond to abstain from the commission of any offence under Chapter IV of the Narcotic Drugs and Psychotropic Substances Act, 1985 for the term of, and I hereby bind myself not to commit any such offence during the said term and, in case of my making default therein, I hereby bind myself to appear before the Court and receive sentence when called upon during the said term. In case of my making default therein, I hereby bind myself to forfeit to the Government the sum of rupees.....

Dated this (Signature)

(Where a bond with sureties is to be executed add:)

We do hereby declare ourselves sureties for the above named that he/she will abstain from the commission of offence under Chapter IV of the Narcotic Drugs and Psychotropic Substances Act, 1985, during the said term; and on his/her failure so to abstain, he/she will appear before the Court and receive sentence when called upon during the said term and in case of his/her making default therein, we bind ourselves jointly and severally to forfeit to the Government the sum of rupees.....

Dated this day of 20.....

(Signature)

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